

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mehdi Righi	Team: Squad #15	CCRB Case #: 202302839	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/04/2023 10:05 PM	Location of Incident: East 144th Street and Concord Avenue	18 Mo. SOL 10/4/2024	Precinct: 40		
Date/Time CV Reported Wed, 04/05/2023 2:43 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/05/2023 2:43 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Tiago Gomes	15111	966599	040 PCT
2. PO Andrei Nijnic	06784	961005	040 PCT
3. SGT Erik Alba	01074	942933	040 PCT
4. PO Malik Underwood	19935	959321	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Erik Alba	Abuse: Sergeant Erik Alba stopped § 87(2)(b)	A . Substantiated
B . SGT Erik Alba	Abuse: Sergeant Erik Alba stopped Individuals.	B . Substantiated
C . PO Malik Underwood	Abuse: Police Officer Malik Underwood stopped § 87(2)(b)	C . Substantiated
D . PO Malik Underwood	Abuse: Police Officer Malik Underwood stopped Individuals.	D . Substantiated
E . PO Tiago Gomes	Abuse: Police Officer Tiago Gomes stopped § 87(2)(b)	E . Substantiated
F . PO Tiago Gomes	Abuse: Police Officer Tiago Gomes stopped Individuals.	F . Substantiated
G . PO Andrei Nijnic	Abuse: Police Officer Andrei Nijnic stopped § 87(2)(b)	G . Substantiated
H . PO Andrei Nijnic	Abuse: Police Officer Andrei Nijnic stopped Individuals.	H . Substantiated
I . PO Malik Underwood	Abuse: Police Officer Malik Underwood searched an individual.	I . Substantiated
J . PO Tiago Gomes	Abuse: Police Officer Tiago Gomes searched an individual.	J . Substantiated
K . PO Andrei Nijnic	Abuse: Police Officer Andrei Nijnic searched an individual.	K . Substantiated
L . PO Andrei Nijnic	Abuse: Police Officer Andrei Nijnic searched searched a vehicle belonging to § 87(2)(b)	L . Substantiated
M . PO Malik Underwood	Abuse: Police Officer Malik Underwood failed to provide § 87(2)(b) with a business card.	M . Substantiated
N . SGT Erik Alba	Abuse: Sergeant Erik Alba failed to provide § 87(2)(b) with a business card.	N . Substantiated

Case Summary

On April 5, 2023, § 87(2)(b) filed this complaint with the CCRB via telephone.

On April 4, 2023, at approximately 10:05 PM, § 87(2)(b) and his three unidentified male friends were talking amongst themselves on a sidewalk near the intersection of East 144th Street and Concord Avenue in the Bronx. § 87(2)(b) and two friends stood on the sidewalk while the third friend sat in the front passenger seat of a parked vehicle that belonged to § 87(2)(b). Sergeant Erik Alba, Police Officer Malik Underwood, Police Officer Tiago Gomes, and Police Officer Andrei Nijnic from the 40th Precinct drove their black unmarked sedan on Concord Avenue and stopped next to § 87(2)(b) vehicle. The officers asked the four males who the vehicle belonged to, but the males remained silent. The officers examined the vehicle and once it was determined that the vehicle was not stolen, the officer turned their attention towards § 87(2)(b) and his friends. PO Nijnic, PO Gomes, and PO Underwood, under the supervision of Sgt. Alba proceeded to question one of § 87(2)(b) friends about the contents of his front jacket pocket (**Allegations A, B, C, D, E, F, G, and H: Abuse of Authority – Stop, substantiated**). The three officers then shined their flashlights into the pocket (**Allegations I, J, and K: Abuse of Authority – search of person, substantiated**). The officers did observe any weapons in the individual's pockets. PO Nijnic opened the door of § 87(2)(b) vehicle (**Allegation L: Abuse of Authority – search of vehicle, substantiated**). § 87(2)(b) asked him why he opened the door of the vehicle and informed PO Nijnic that it belonged to his uncle. PO Nijnic told § 87(2)(b) that he saw the keys inside the vehicle and asked § 87(2)(b) why he did not take the keys with him. § 87(2)(b) requested their business cards. PO Gomes and PO Nijnic provided their business cards. Sgt. Alba and PO Underwood wrote their names and badge numbers on the back of the business cards. The written information on the business cards was illegible (**Allegations M and N: Abuse of Authority – Failure to provide RTKA card, substantiated**). No arrests were made, or summonses issued.

The investigation obtained body-worn camera (BWC) footage of the incident (**BR 10, 11,12**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Erik Alba stopped § 87(2)(b)
Allegation (B) Abuse of Authority: Sergeant Erik Alba stopped individuals.
Allegation (C) Abuse of Authority: Police Officer Malik Underwood stopped § 87(2)(b)
Allegation (D) Abuse of Authority: Police Officer Malik Underwood stopped individuals.
Allegation (E) Abuse of Authority: Police Officer Tiago Gomes stopped § 87(2)(b)
Allegation (F) Abuse of Authority: Police Officer Tiago Gomes stopped individuals.
Allegation (G) Abuse of Authority: Police Officer Andrei Nijnic stopped § 87(2)(b)
Allegation (H) Abuse of Authority: Police Officer Andrei Nijnic stopped individuals.
Allegation (I) Abuse of Authority: Police Officer Malik Underwood searched an individual.
Allegation (J) Abuse of Authority: Police Officer Tiago Gomes searched an individual.
Allegation (K) Abuse of Authority: Police Officer Andrei Nijnic searched an individual.

§ 87(2)(b) telephone interview was conducted on April 20, 2023. § 87(2)(b) declined to identify the individuals that accompanied him during the incident. PO Gomes was interviewed in-person at the CCRB on August 23, 2023. PO Underwood was interviewed in-person at the CCRB on August 23, 2023. Sgt. Alba was interviewed in-person at the CCRB on December 6, 2023. PO Nijnic was interviewed in-person at the CCRB on December 12, 2023.

§ 87(2)(b) stated (**BR 5**) that he was talking with three male friends near the intersection of East

144th Street and Concord Avenue in the Bronx. § 87(2)(b) and his two friends stood on the sidewalk while the third friend sat in the front passenger seat of a parked vehicle. § 87(2)(b) and the seated friend charged their cellphones inside the car while the group spoke amongst themselves. § 87(2)(b) did not want to disclose the identities of his friends. § 87(2)(b) friend sat in a green 2005 Ford 500 Sedan with temporary Georgia plates. The car was legally parked facing north on Concord Avenue. The Ford's engine was off. The keys were placed on the middle armrest of the front passenger seats. The key did not need to be in the ignition to keep the ignition on. The Ford's rear passenger windows and rear windshield were tinted but § 87(2)(b) noted that a person could still see the inside of the vehicle. § 87(2)(b) and his friends were at this location for one to two hours before an unmarked black patrol car slowly drove south on Concord Avenue. § 87(2)(b) did not see the vehicle approach his position. The unmarked patrol car stopped next to the green Ford. An occupant of the unmarked patrol car flashed their flashlight at the green Ford. The friend seated in the green Ford grabbed the phones and stepped out of the car. He closed the car door and handed § 87(2)(b) his cellphone. Four uniformed officers exited their vehicle. The officers shined their flashlights at § 87(2)(b) group as they approached them on the sidewalk. The officers surrounded § 87(2)(b) and his friends by spreading out in front of them. PO Nijnic asked § 87(2)(b) and his friends to whom the green Ford belonged. § 87(2)(b) and his friends remained silent. PO Gomes examined the green Ford's front windshield on the driver's side. § 87(2)(b) believed PO Gomes ran a check because he was using his phone while looking at the tag. Sgt. Alba stood silently near PO Gomes and observed the other officers interact with § 87(2)(b) and his friends. Sgt. Alba did not issue commands to the other officers. PO Underwood asked one of § 87(2)(b) friends why they were wearing a bulletproof vest. The friend explained to PO Underwood that he was wearing a back brace. PO Underwood asked to show him his brace. § 87(2)(b) friend removed the brace and showed it to PO Underwood. A brief period of silence ensued. One of § 87(2)(b) friends asked the officers if they could leave. The officers told them that they could go. § 87(2)(b) and his friends began walking away in the direction of East 145th Street.

PO Gomes, PO Underwood, PO, Nijnic, and Sgt. Alba (BR 6, 7, 8, 9) stated that were on patrol in the 40th Precinct in their black unmarked patrol car. PO Underwood drove the car. Sgt. Alba sat in the front passenger seat. PO Nijnic sat in the rear left passenger seat, and PO Gomes sat in the rear right passenger seat. Sgt. Alba was the supervising officer. PO Gomes observed a running vehicle parked on Concord Avenue near East 144th Street and informed the other officers in the vehicle. PO Nijnic observed an individual quickly exiting the vehicle as they turned onto Concord Avenue. The vehicle was unoccupied and legally parked. PO Gomes described it as a dark-colored sedan without window tints, while PO Nijnic described it as gray or silver with unclear details. PO Underwood stated that he knew the vehicle was on because he could hear the engine running. PO Underwood believed that the license plate was missing or may have been made from paper which led him to suspect that the vehicle was potentially unregistered based on prior experiences. PO Nijnic thought the car had lights on. PO Nijnic was not sure if the lights came from the headlight or another source of the vehicle. Sgt. Alba did not state that the vehicle was running and was informed by one of the officers that the sedan had a temporary tag. The officers also observed four black males leaning against a nearby wall, wearing dark clothing, some with hoodies, approximately 10 feet from the vehicle. The males did not appear to be engaging in any criminality at this time. The officers found their behavior unusual given the area's history of stolen vehicles and noted the combination of residential and industrial buildings nearby. The officers collectively decided to investigate the running vehicle, suspecting it might be stolen. They did not discuss specific enforcement activities before exiting the vehicle. PO Nijnic, in his statement, mentioned suspicion regarding the license plate's legality and the possibility of the group of males casing the area or targeting the vehicle. PO Nijnic noted issues with the license plate and considered the car abandoned. He did not clarify what the issues were because he could remember what he observed

PO Gomes checked the sedan's VIN number and determined that the vehicle was not stolen. While PO Gomes checked the VIN, PO Nijnic asked the four males if the sedan belonged to any of them. The males remained silent and did not respond. PO Gomes, PO, Nijnic, PO Underwood observed a bulge on the jacket pocket of one of the males prompting them to conduct a "plain view" look inside the pocket with flashlights. Three officers each used the term "plain view" to describe their look inside the pocket. Both officers asked the individual what was going on with the pocket. The individual did not answer their questions. None of the officers were able to describe or recall the size or shape of the bulge although they noted that the bulge was visible from the front pockets of the individual's jacket. The officers looked inside the pocket for any weapon that was causing the bulge. Sgt. Alba stood several feet away from the officers and the four males to observe the situation. They did not physically touch the male or make any accusations of criminality. The officers ultimately did not see any weapons in the individual's pocket. They could not say with certainty what caused the bulge. PO Underwood thought that the individual's pocket contained headphones. PO Nijnic remembered seeing an object that resembled gloves, a hat, or a scarf. The individual asked PO Underwood if he was free to go after PO Underwood shined his flashlight into his pocket. PO Underwood replied that he was free to go and said, "you're not stopped." PO Underwood then saw what appeared to be the "tail" of a bulletproof vest as the male individual began walking away. PO Underwood asked male individual, "what is that?" PO Underwood explained that the "tail" resembled the thin back on bullet proof vests worn by officers. The back was tucked in an officer's pants so that the vest does not move. Civilians are permitted to wear a bulletproof vest but it can become an "add-on" charge if worn while committing a crime. PO Underwood wanted to confirm if the individual wore a bulletproof vest; he questioned the male about it, and learned that it was actually a back brace. None of the officers detained the male during the incident and explained that the male was free to leave at any time. Afterward, the officers returned to their vehicle, deactivated their body-worn cameras, and prepared to leave. The officers all stated that the individual was free to leave during the incident.

PO Nijnic's body worn camera shows **(BR 10)** him walked towards a group of four black males at 0:59. § 87(2)(b) green Ford is visible in front of PO Nijnic. The car does not have its headlights on. There is no sound of the engine running. The four males are standing on the sidewalk next to a blue colored building. PO Nijnic asks the group of males who the owner of a parked Ford Sedan is. The group remains silent. PO Gomes continues to ask if it is anybody's car or if someone came out of it. The group of males do not answer PO Nijnic's questions. At 1:10, PO Nijnic mentions to the group that the keys are in the car. He then added to PO Underwood that "they're right there in the middle." At 1:21, PO Nijnic walks onto the sidewalk and positions himself right of the group of males. PO Nijnic maintains this position for several minutes. Everyone remains silent. At 3:15, PO Underwood and PO Gomes approach the group of males on the sidewalk and begin speaking with a male with tied up hair. At 3:30, PO Underwood asks the individual, "what is going on with your pockets?" At 3:50, the individual asks PO Gomes, "you wanna search me?" PO Gomes replies, "what you got?" At 4:19, PO Gomes asks PO Nijnic, "can you make it out?" and hands him his flashlight. PO Nijnic uses his flashlight to look inside the right jacket pocket of belonging to the black male with tied up hair. PO Nijnic does not touch his pocket. He tells PO Gomes he saw gloves and a mask. The bulge is not bulky and does not have any distinct shape. There is no outline caused by an object pressing against the pocket from inside. At 4:43, a male wearing a black hoodie and black sneakers, with the word "AIR" on them, asks PO Nijnic if they could all leave. PO Nijnic replies they're not stuck and could have left a long time ago. At 5:01, PO Underwood asks the black male with the tied-up hair why he is wearing a bulletproof vest as he shines his flashlight at him. PO Nijnic instructs the male with the tied-up hair three times, "Open your jacket." He complies and unzips his jacket. At 5:50, while pointing at the parked Ford Sedan, PO Nijnic asks the group of males if they're leaving the car and if it belongs to anyone as they're walking down the sidewalk away from officers. The group does not respond to PO Nijnic.

PO Underwood's body worn camera shows (BR 12) the vehicle temporary tag reads § 87(2)(b) at 1:42. PO Underwood uses his flashlight to shine a light into the male left jacket pocket at 3:48. PO Underwood does not touch the pocket. At 5:08, PO Underwood shines his flashlight at a flap hanging out under the rear of the black male with tied up hair's jacket. PO Underwood asks the male why he has a bulletproof vest on. At 5:40, the male with tied up hair opens his jacket and shows officers a strap. PO Underwood asks if they are suspenders.

PO Gomes' body worn camera (**BR 11**) shows PO Gomes stepping out of a vehicle at 0:57. Audio begins playing seconds later. At 1:18, PO Gomes shines his flashlight at the VIN number attached to the windshield of a parked Ford sedan. He is heard reciting numbers under his breath.

According to New York Criminal Procedure Law §140.50 (**BR 22**), police officers are allowed to temporarily detain individuals to investigate potential criminal activity based on reasonable suspicion, ensuring both public safety and the individuals' rights. During a stop, the officer can ask the person for their name, address, and an explanation of their conduct. If the officer reasonably suspects that the person is armed and dangerous, they may frisk the person to check for weapons. The frisk is limited to a pat-down of the person's outer clothing. If the officer finds a weapon or any item that could be used as a weapon during the frisk, it can be taken away.

NYPD Patrol Guide procedure 212-11 (**BR 15**) defines a stop as a “Level 3 Encounter,” during which an officer can detain, question, and frisk an individual if they have reasonable suspicion that a crime was committed.

In People v. De Bour, 40 N.Y.2d 210 (1976), an officer must have reasonable suspicion that an individual is committing, or is about to commit a crime, for the stop of an individual to be justified (BR 23).

In People v. Jones, 164 A.D.3d 1363 (App. Term, 2d Dept., 2018), the court concluded that when a defendant had a nondescript bulge in his pocket and walked away from the officer without complying with the officer's request for him to stop, this does not support a reasonable suspicion of a particularized criminal action. As such, an officer observing these behaviors would lack sufficient legal justification to either question or stop the subject (**BR 18**).

[REDACTED] § 87(2)(g) [REDACTED]
[REDACTED] § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Upon
concluding their examination of the vehicle, the officers shifted their attention to § 87(2)(b) and
his friends instead of resuming patrol. They shined their flashlights at the group and stood next to
them until PO Underwood asked what was in the pocket. § 87(2)(g)

PO Nijnic's body worn camera also shows that bulge does not have any distinct shape or sharp outlines. § 87(2)(g)

It is therefore recommended that **Allegations A, B, C, D, E, F, G, and H** be closed as ***Substantiated***.

In People v. Brown, 96 N.Y.2d 80 (2001) (**BR 24**), the court defined the plain view doctrine, in that officers may properly seize an item in plain view without a warrant if: (i) they are lawfully in a position to observe the item; (ii) they have lawful access to the item itself when they seize it; and (iii) the incriminating character of the item is immediately apparent.

In People v. Mosquito, 197 A.D.3d 504 (2021) (**BR 25**), the court defined the following: “A truly cursory inspection—one that involves merely looking at what is already exposed to view, without disturbing it—is not a search and therefore does not even require reasonable suspicion. By contrast, the plain view doctrine is not applicable where the object must be moved or manipulated before its illegality can be determined. The movement or manipulation of an object from its original state in a manner that goes beyond the objectives of the original search constitutes an independent search or seizure within the meaning of the State and Federal Constitutions. Such a search or seizure may not be upheld without proof that the officer who moved or manipulated the object had probable cause to believe that the object was evidence or contraband at the time that it was moved or manipulated.” The court also ruled that “The plain view doctrine may not be used to extend a general exploratory search from one object to another until something incriminating at last emerges.”

According to People v. Knapp, 52 N.Y.2d 689 (1981), what a person exposes to the public eye cannot be the subject of a legitimate expectation of privacy (**BR 17**).

New York Criminal Procedure Law §140.50(3) (**BR 22**) establishes that a police officer may search an individual for a deadly weapon when they reasonably believe they may be in danger of physical injury.

PO Underwood, PO Gomes, PO Nijnic shined their flashlights into an individual's front jacket pocket. § 87(2)(g)

[REDACTED]

§ 87(2)(b)

[REDACTED]

The officers also instructed the individual to open their jacket to a view a piece of garment that is not plainly visible because he was suspected of wearing a bulletproof vest. The individual needed to manipulate his jacket at the instruction of the officers to reveal their back brace. § 87(2)(g)

[REDACTED]

It is therefore recommended that **Allegations I, K, and K** be closed as ***Substantiated***.

Allegation (L) Abuse of Authority: Police Officer Andrei Nijnic searched a vehicle belonging to § 87(2)(b)

§ 87(2)(b) stated (BR 5) that after one of his friends asked the officers if they could leave. The officers told them that they could go. § 87(2)(b) and his friends began walking away in the direction of East 145th Street. PO Nijnic proceeded to open the front passenger door of the door of the green Ford. PO Nijnic did not enter the vehicle. § 87(2)(b) quickly walked up to PO Nijnic with his phone recording and asked him why he opened the door. PO Nijnic explained that he opened the door because no one answered his questions and saw the keys on the armrest. § 87(2)(b) told PO Nijnic his uncle owned the vehicle and explained that no one was required to answer his questions. PO Nijnic told § 87(2)(b) that he saw the keys inside the vehicle and asked § 87(2)(b) why he did not take the keys with him. § 87(2)(b) replied that he was aware that the keys were inside the vehicle and was waiting for PO Nijnic and his partners to leave.

PO Nijnic stated (BR 9) that PO Nijnic asked the group of four males several times if the car belonged to anybody when he initially arrived on scene. The males did not respond. The officers proceeded to examine the vehicle to see if there were any issues because its license plate did not appear to be legal. PO Nijnic did not exactly recall what the plate looked like or why they were not legal. He noted that it was either a paper plate or temporary tag. PO Nijnic believed the plates' status was a possible explanation for the silence from the group of males because they did not want to get in trouble for having a forged instrument. One of the officers checked the VIN number. PO Nijnic did not recall which officer made the check. The check revealed that the vehicle was not reported stolen. His attention later shifted to the car after § 87(2)(b) and his friends began to walk away. PO Nijnic considered the car abandoned at this point. PO Nijnic explained the procedure for dealing with abandoned cars involved first identifying the vehicle owner. PO Nijnic would then contact the owner about the vehicle. If the owner could not be reached, the car would be vouchered for safekeeping. PO Nijnic could see the keys inside the vehicle. PO Nijnic did not recall the position of the keys. PO Nijnic added that even though they ran the vehicle's VIN numbers, the vehicle may not have been registered to a new owner. PO Nijnic opened the front passenger door to further investigate who the car belonged. PO Nijnic intended to find any a letter or registration related to the owner. PO Nijnic's body did not enter the vehicle. § 87(2)(b) walked back to the car and approached PO Nijnic after he opened the door. § 87(2)(b) told PO Nijnic that the car belonged to his uncle. PO Nijnic replied that no one replied when he asked them who the vehicle belonged to. PO Nijnic did not take further action with § 87(2)(b) car because it was parked, and he did not observe any contraband. PO Nijnic told § 87(2)(b) that if the vehicle belonged to his uncle, the officers were going to go about their business. PO Nijnic closed the door and the officers returned to their unmarked vehicle.

PO Nijnic's body worn camera shows (BR 10) pointing at the parked Ford Sedan at 5:50. He asks the group of males, "Y'all leaving the car here...doesn't belong to no one?" as they're walking down the sidewalk away from officers. The group does not respond to PO Nijnic. At 5:58, PO Nijnic opens the front passenger door of the parked Ford sedan. A set of keys are seen resting on the center armrest. His body does not enter the vehicle. At 6:07, PO Nijnic keeps the front passenger door open and opens the rear right door of the Ford Sedan. At 6:09, § 87(2)(b) approaches PO Nijnic. PO Nijnic asks him whom the car belongs to. § 87(2)(b) replies that it belongs to his uncle. PO Nijnic closes the rear right passenger door. At 6:18, § 87(2)(b) asks PO Nijnic why he opened the door. PO Nijnic responds saying that he asked who the car belonged to, and no one said anything. He adds that § 87(2)(b) looked at him and did not say anything. At 6:26, § 87(2)(b) reiterates that it's his uncle's car. PO Nijnic tells § 87(2)(b) that the keys are

right there and asks if he is going to take them and lock the vehicle. § 87(2)(b) states that he is waiting for officers to leave.

At 6:38, PO Nijnic explains to § 87(2)(b) that he saw the keys inside the Ford sedan and did not know what was going on with it. At 6:48, PO Nijnic closes the front passenger seat of the Ford Sedan. He walks away from the vehicle and returns to a black unmarked sedan in the street.

According to *People v. David L.*, 56 N.Y.2d 698 (1982), in the absence of any independent indication of criminality, or of danger to the officer themselves, they are not entitled to take the additional step of opening the doors of a vehicle to look inside (**BR 19**).

According to NYPD Patrol Guide Procedure 209-27, When a uniformed member of the service observes the key in the ignition of an unattended motor vehicle for more than three minutes, they must perform the following sequence of actions: 1. Lock ignition. 2. Remove key. 3. Prepare two copies of removal of ignition key. 4. Attach one copy of removal of ignition key to steering wheel and attach remaining copy to key. 5. Prepare summons for violation of administrative code, returnable to parking violations, and place on windshield. 6. Give summons and key to violator and destroy removal of ignition key, if violator returns while member is at scene. 7. Deliver key with attached tag to desk officer if violator does not return. (**BR 21**).

It is undisputed that PO Nijnic opened the door of § 87(2)(b) vehicle after he observed keys inside. § 87(2)(g)

§ 87(2)(b) PO Nijnic's body worn camera shows the keys laying on the armrest. § 87(2)(g)

It is therefore recommended that **Allegation L** be closed as *Substantiated*.

Allegation (M) Abuse of Authority: Police Officer Malik Underwood failed to provide § 87(2)(b) with a business card.

Allegation (N) Abuse of Authority: Sergeant Erik Alba failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated (**BR 5**) the officers entered their vehicles after ending their interactions with § 87(2)(b) and his friends on the sidewalk. § 87(2)(b) asked the officers for their business cards. PO Gomes and PO Nijnic provided their business cards. Sgt. Alba and PO Underwood wrote their names and badge numbers on the back of the business cards. The written information on the business cards was illegible. § 87(2)(b) was unable to link the information provided on the business cards with the officers he interacted with. The officers entered their vehicle and drove south on Concord Avenue.

§ 87(2)(b) shared (**BR 4**) a photo of the business cards provided by the officers on the day of the incident. The photos show § 87(2)(b) holding two pre-printed physical cards that belong to PO Nijnic and PO Gomes. The 40th PCT is handwritten on both cards. Additional handwritten text is visible on PO Nijnic's card.

PO Underwood stated (**BR 7**) that § 87(2)(b) approached the officers as they were seated and

asked for their business cards. PO Underwood believed the request was directed at all officers. PO Underwood did not recall how § 87(2)(b) phrased his request. PO Underwood reactivated his body worn camera. PO Underwood took a blank business card and wrote down his information. PO Underwood explained that the business card included the officer's name, shield number, phone number, and the precinct number. PO Underwood confirmed that he included all of this information on the business card. He then handed the business card to § 87(2)(b). PO Underwood was then shown a photo provided by § 87(2)(b) (BR 4) of the two business cards he received from officers during the incident. PO Gomes and PO Nijnic's names are printed on the cards. PO Underwood was asked to indicate where he wrote his information. PO Underwood pointed at PO Nijnic's card. PO Underwood stated that he wrote his name and shield number when asked what information he wrote down. PO Underwood shares the same command as PO Nijnic. PO Underwood acknowledged that his phone number was not on the card.

Sgt. Alba stated (BR 8) that § 87(2)(b) approached them and asked for their business cards. Sgt. Alba did not recall how § 87(2)(b) phrased his request but explained that it was directed at all officers. Sgt. Alba replied, "sure, no problem." Sgt. Alba did not have a business card in his possession at the time of the incident because he ran out. Sgt. Alba grabbed a business card from one of the officers. Sgt. Alba could not remember which officer he took the card from. Sgt. Alba crossed out the officer's name and wrote his name, rank, shield number and precinct number. Sgt. Alba gave § 87(2)(b) the card. The officers then resumed patrol after giving § 87(2)(b) their cards. Sgt. Alba was shown a photo of two business cards provided to § 87(2)(b) (BR 4). The business cards belonged to PO Gomes and PO Nijnic. PO Nijnic's business card shows handwritten text. Sgt. Alba pointed at the handwritten text above the NYPD text logo on PO Nijnic's business card. Sgt. Alba clarified that he had written his last name and my shield number "1074."

NYC Administrative Code 14-174 (BR 14) and NYC Administrative Guide 304-11 (BR 13) state that a business card must be provided during a law enforcement activity that does not involve an arrest or summons. If a physical card cannot be provided, then the information can alternatively be provided written down or verbally. An officer must include, at minimum, their name, rank, shield number, and command when provided via alternate method.

§ 87(2)(g) PO Underwood and Sgt. Alba hand wrote their information on a pre-printed business card belonging to PO Nijnic, § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations M** and **N** be closed as *Substantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b)
-
-
-
-

- § 87(2)(b) [REDACTED]
- [REDACTED]
- PO Underwood has been a member of service for eight years and has been a subject in 14 CCRB complaints and 42 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Gomes has been a member of service for five years and has been a subject in 15 CCRB complaints and 29 allegations, of which one was substantiated.:
 - § 87(2)(g) [REDACTED]
- PO Nijnic has been a member of service for eight years and has been a subject in eight CCRB complaints and 24 allegations, of which three were substantiated.:
 - 201806550 involved a substantiated allegation of a threat of force against PO Nijnic. The Board recommended Command Discipline B and the NYPD imposed no disciplinary action.
 - 202207545 involved a substantiated allegation of a stop against PO Nijnic. The Board recommended Command Discipline A. No NYPD disposition was listed.
 - 202300188 involved a substantiated allegation of a stop against PO Nijnic. The Board recommended Command Discipline A. No NYPD disposition was listed.
- Sgt. Alba has been a member of service for 17 years and has been a subject in four CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of March 5, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 2).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 15

Investigator:	<u>Mehdi Righi</u>	<u>Inv. Mehdi Righi</u>	<u>07/11/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Owen Godshall</u>	<u>SI Owen Godshall</u>	<u>07/11/2024</u>
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Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date